

Here, it is undisputed that Defendant served verified responses after the motion was filed and as such, the motion is moot.

Sanctions

As to sanctions, for production of documents, Section 2031.300(c) provides that “the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct. 3.1348(a).)

Defense counsel requested a continuance to May 6, Plaintiff’s counsel provided until April 15 and Defendant served unverified responses on April 15. Defense counsel did not provide an explanation for not having the verification prior to service, other than she forgot to follow up with her client because other matters needed immediate attention. However, that does not excuse failing to respond timely. Sanctions are warranted. However, Plaintiff’s request for \$2,565 is too much for this straightforward motion. Reduced to \$960 (2 hours x \$400 + \$60 filing fee) payable within 30 days of this order becoming final to Plaintiff by Defendant and Defense counsel jointly.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2601050	ROSARIO VS PSTPS, INC.	MOTION FOR LEAVE TO AMEND COMPLAINT OF PRISCILLA BRITTANY ROSARIO BY PRISCILLA BRITTANY ROSARI

Tentative Ruling: Granted.

No opposition filed by served defendants and several defendants have not yet been served.

Plaintiff to file proposed 1st Amended Complaint within 5 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2401945	VILLAGOMEZ VS URIBE	NOTICE OF MOTION AND MOTION FOR ORDER SETTING ASIDE DEFAULT, VACATING DEFAULT JUDGMENT

Tentative Ruling: Denied.

Moving Defendant seeks relief from previously entered default on September 25, 2024.

Court to provide notice pursuant to CCP 1019.5.

Motion to Set Aside

The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.) If the party in default moves promptly for relief and no prejudice to the opposing party will result from setting aside the default, only “very slight evidence will be required to justify a court in setting aside the default” (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233 [quoting *Berri v. Rogero* (1914) 168 Cal. 736, 740].)

The motion must be filed within six months of the clerk’s entry of default and also within a “reasonable time” after discovery of the default. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.) A delay of three or more months or more is an unofficial standard under which courts will routinely deny relief unless there is a satisfactory explanation for the delay. (*Stafford v. Mach* (1998) 64 Cal.App.3d 1174, 1184.) The time runs from the entry of the default, not the default judgment. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.)

Here, the court does not have jurisdiction to grant the requested relief almost 2-years after entry of default.